

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jennifer Jarett	Team: Squad #11	CCRB Case #: 201408719	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 06/29/2014 3:55 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/29/2015	Precinct: 113		
Date/Time CV Reported Sat, 08/16/2014 10:04 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/25/2014 10:58 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
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Subject Officer(s)	Shield	TaxID	Command
1. Officers			113 PCT
2. SGT Christophe Ward	02117	934299	113 PCT
3. SGT John Dammacco	5117	946892	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Charles Lovelock	22435	942082	113 PCT
2. POF Rebecca Gonzalez	28578	953920	113 PCT
3. POM Elijah Quervalu	26598	954251	113 PCT
4. POF Shuyi Lin	03656	954068	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Christophe Ward	Abuse: At § 87(2)(b) in Queens, Sgt. Christopher Ward frisked § 87(2)(b)	A . Alleged Victim Uncooperative
B . SGT Christophe Ward	Abuse: At § 87(2)(b) in Queens, Sgt. Christopher Ward searched § 87(2)(b)	B . Alleged Victim Uncooperative
C . SGT John Dammacco	Force: At § 87(2)(b) in Queens, PO John Dammacco pointed his gun at § 87(2)(b)	C . Exonerated
D . SGT Christophe Ward	Discourtesy: At § 87(2)(b) in Queens, Sgt. Christopher Ward spoke discourteously to § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated
E . SGT Christophe Ward	Abuse: Sgt. Christopher Ward entered § 87(2)(b) in Queens.	E . Exonerated

Officer(s)	Allegation	Investigator Recommendation
F . Officers	Force: At § 87(2)(b) in Queens, officers used physical force against § 87(2)(b)	F . Exonerated
G . Officers	Force: At § 87(2)(b) in Queens, officers used a chokehold against § 87(2)(b)	G . Unfounded
H . Officers	Force: At § 87(2)(b) in Queens, officers restricted the breathing of § 87(2)(b)	H . Unfounded

Case Summary

On June 29, 2014, at some time before 4am, § 87(2)(b) her former foster son § 87(2)(b) her mother-in-law, § 87(2)(b) and other family members and friends including § 87(2)(b) and § 87(2)(b) returned to § 87(2)(b)'s home at § 87(2)(b), in Queens, after attending a party. One of § 87(2)(b)'s friends allegedly asked § 87(2)(b) to buy narcotics from someone waiting outside of the § 87(2)(b), located at § 87(2)(b). After making the transaction, § 87(2)(b) began to run home, at which point he was observed by Sgt. Christopher Ward, Officer John Dammacco, Officer Charles Lovelock, Officer Rebecca Gonzalez, Officer Elijah Quervalu, and Officer Shuyi Lin of the 113th Precinct, who were in a marked van on patrol. § 87(2)(b) alleged that Sgt. Ward frisked and searched him (**Allegation A** and **Allegation B**). § 87(2)(b) then fled from the officers and ran into § 87(2)(b). The officers pursued him. While waiting for the door of the house to open, Officer John Dammacco pointed his firearm (**Allegation C**). Sgt. Ward allegedly used profanity when interacting with § 87(2)(b) and § 87(2)(b) (**Allegation D**). Sgt. Ward entered § 87(2)(b) to apprehend § 87(2)(b) (**Allegation E**) and the rest of his team followed him. Once § 87(2)(b) was apprehended, § 87(2)(b) prevented the officers from leaving the house and fell down the stairs. When the officers tried to effect her arrest, they pulled § 87(2)(b) from the house and allegedly slammed her onto the ground (**Allegation F**). Officers then allegedly stepped on her neck and back and allegedly restricted her breathing (**Allegation G** and **Allegation H**).

Mediation, Civil, and Criminal Histories

This case was not suitable for mediation. § 87(2)(b)'s charges regarding this incident remain open; § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] (encl. 22a-g). § 87(2)(b) filed a Notice of Claim regarding this incident for being assaulted, falsely arrested, falsely imprisoned, and suffering injury to her head, neck, back, psychological damage, pain, and suffering and is asking for one million dollars as redress (encl. 6j-n; 50-h hearing encl. 6o-6rrrrr) [§ 87(2)(b)] [§§ 86(1)(2)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

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§ 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b) was a victim in case § 87(2)(b) § 87(2)(b)
- Sgt. Christopher Ward has been a member of the service for 11 years. He has had allegations substantiated against him in two cases: 200905624, in which he was found guilty at a DCT trial and lost five vacation days for a premises entered/searched allegation. In case 201400676, the Board recommended Command Discipline B for a stop and seizure of property (encl. 2a-c).
- Officer John Dammacco, who has since been promoted to the rank of sergeant, but is referred to as the rank of Officer throughout the report, has been a member of the service for six years; there are no allegations substantiated against him (encl. 2d).

Findings and Recommendations

Allegations not Pleaded

§ 87(2)(g)

Although § 87(2)(b) and § 87(2)(b) alleged force on behalf of § 87(2)(b) when he provided his phone statement, he stated that § 87(2)(b) had been asking him to lie for her and admitted that no force was used during his apprehension. § 87(2)(g) § 87(2)(b) stated in her verified interview that when the officers tried to remove § 87(2)(b) from the home, she stood on the stairs in front of the officers, who told her to move out of the way, and she refused to move. An officer then extended his hand out to get her to move, and she fell backwards down the stairs. The video of the incident (encl. 14a) corroborates that she was not pushed down the stairs, and the officer put his hand out towards her back multiple times, but she kept moving and blocking the officers and appeared to lose her balance and fell. It was not until she was called for follow-up questions § 87(2)(a) Gen.Mun. §50-H(3)

§ 87(2)(g)

Explanation of Subject Officer Identification

Sgt. Ward admitted to being the officer who exited the van to interact with § 87(2)(b) and that he interacted with the civilians who opened the door and made the decision to enter the house. Officer Dammacco admitted to pointing his gun. § 87(2)(g)

§ 87(2)(b)

Recommendations

Allegation A: At § 87(2)(b) in Queens, Sgt. Christopher Ward frisked § 87(2)(b)

Allegation B: At § 87(2)(b) in Queens, Sgt. Christopher Ward searched § 87(2)(b)

§ 87(2)(b) stated in his phone statement that after allegedly buying marijuana, and prior to fleeing from the officers, he was frisked and searched (encl. 13a-c). § 87(2)(g)

it is recommended that **Allegation A** and **Allegation B** be closed as **victim uncooperative**.

Allegation C: At § 87(2)(b) in Queens, PO John Dammacco pointed his gun at § 87(2)(b)

Although § 87(2)(b) stated that she saw multiple officers with guns pointed at her (encl. 6a-i), and § 87(2)(b) stated that multiple officers had their guns pointed at the door (encl. 12a-b), § 87(2)(b) stated in her follow-up phone call that she saw a single outstretched arm holding a gun (encl. 9e). § 87(2)(g)

Officer Dammacco stated (encl. 20a-g) that as he chased § 87(2)(b) he continually yelled out the window of the marked van to stop, and that they were the police, even though they were in a

marked van. § 87(2)(b) ran holding an object Officer Dammacco could not see in one hand, and was holding his waistband as he ran with the other hand. Because of the way § 87(2)(b) was holding his waistband and “running for his life” from the police, Officer Dammacco believed that § 87(2)(b) had a firearm in his waistband. When the officers arrived at the house, it took a few minutes for anyone to open the door, even though the officers were knocking. When the door did begin to open, Officer Dammacco pointed his firearm at the door, because he did not know what the threat was behind the door. Given the frantic chase and because Officer Dammacco had believed that § 87(2)(b) had a firearm, Officer Dammacco wanted to cover the door in case something bad happened when it opened. Once he saw § 87(2)(b) at the door, he immediately holstered his firearm.

In *PD v. Gliner*, an officer is given broad discretion to display his weapon whenever he feels that his life or the life of another is endangered (encl. 1o).

§ 87(2)(g)
§ 87(2)(b)
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§ 87(2)(b)
§ 87(2)(b), it is recommended that **Allegation C** be closed as **Exonerated**.

Allegation D: At § 87(2)(b) in Queens, Sgt. Christopher Ward spoke discourteously to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that when she was speaking to Sgt. Ward at the door of her home and § 87(2)(b) presented her § 87(2)(b), Sgt. Ward allegedly said, “What the fuck is a § 87(2)(b) ?” § 87(2)(b) alleged that when she presented her identification, Sgt. Ward said, “What the fuck is that?” and “Get the fuck out of the way,” as he proceeded into the home (encl. 8a-e). § 87(2)(b) also alleged that she heard an officer say, “Get the fuck out of the way,” when the officers entered but stated that an officer didn’t ask, “What the fuck is a § 87(2)(b) ?” until after § 87(2)(b) was in handcuffs and was about to be led out of the house. All of the officers denied that discourteous language was used at any point in this incident.

§ 87(2)(g)
§ 87(2)(b) As a result, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E: Sgt. Christopher Ward entered § 87(2)(b) in Queens.

It is not in dispute that § 87(2)(b) had narcotics when he was observed by the police, § 87(2)(g)
§ 87(2)(b) It is also not in dispute that § 87(2)(b) ran from the officers and into § 87(2)(b) to avoid apprehension.

Sgt. Ward stated (encl. 15a-h) that during the foot pursuit, he saw § 87(2)(b) running with a firearm in his hand. Although he could not provide a description of the firearm, he stated that he has made over 150 gun arrests and due to his training and experience, he knew it was a gun. Officer Dammacco, who was driving the van and the only officer in the front during the pursuit, stated that while § 87(2)(b) was running, he was holding his waistband in a way that led Officer Dammacco to believe that § 87(2)(b) had a firearm. Although no other officers stated

that they saw § 87(2)(b) with a firearm, they did all state that being seated in the back of the van provided a limited vantage point.

Sgt. Ward stated that he not only was entering the home to arrest § 87(2)(b) after being observed with a large quantity of narcotics, but also because he also believed that § 87(2)(b) had a firearm. He further wanted to make sure that everyone in the home was safe, given the possible presence of a firearm.

In People v. Mojica-Sanchez, 90 A.D.3d 488 (2011), the court held that because the police knew there was a large quantity of drugs present, and the knowledge that the civilians would flee or remove the drugs provided an exigency that would justify a warrantless entry (encl. 1u-v).

§ 87(2)(g)
Therefore, it is recommended that **Allegation E** be closed as **Exonerated**.

Allegation F: At § 87(2)(b) in Queens, officers used physical force against § 87(2)(b)

Allegation G: At § 87(2)(b) in Queens, officers used a chokehold against § 87(2)(b)

Allegation H: At § 87(2)(b) in Queens, officers restricted the breathing of § 87(2)(b)

§ 87(2)(b) stated that an unknown number of officers she could not describe dragged her out of the house, lifted her up to throw her down onto the concrete outside, where her face and head made contact with the ground, and then pressed their feet and knees onto her lower back and neck and pressed down on her, causing her breathing to be restricted, and she screamed that she could not breathe. § 87(2)(b) did not have any visible injuries in her arrest photo (encl. 7a). § 87(2)(b)

§ 87(2)(b) admitted that she refused medical attention while in police custody, which is corroborated by her Medical Treatment of Prisoner Form (encl. 21r). When she sought medical attention after being released, she told medical personnel at § 87(2)(b)

that she was in an altercation with the police § 87(2)(a) PHL § 18(6), § 87(2)(b)

It is not in dispute that § 87(2)(b) entered her bedroom and refused to leave once the officers entered the house. § 87(2)(b) stated that two officers she could not describe dragged § 87(2)(b) out of the home, and although she could not see § 87(2)(b) outside the house, she could hear § 87(2)(b) saying that she could not breathe. § 87(2)(b) is an unrelated friend of § 87(2)(b) whose contact information was provided to the CCRB by § 87(2)(b) after her interview as someone who witnessed the incident, even though § 87(2)(b) did not mention § 87(2)(b)'s presence in her other statements. § 87(2)(b) who lived over three miles from the incident location, stated that she happened to be sitting in her car across the street at 4am and witnessed the incident. She stated that she saw two white males drag § 87(2)(b) out of the house and slam her onto the ground multiple times, at which point a white male put his knee on her neck, and a female officer § 87(2)(b) could not describe further, put her feet on § 87(2)(b)'s back, and § 87(2)(b) said she could not breathe (encl. 10a).

§ 87(2)(b) was seated inside a police vehicle outside the house, waiting for transport, when he saw § 87(2)(b) brought out of the house and handcuffed. He stated that she continually struggled with the officers as they tried to lift her, which they were unable to do. § 87(2)(b) dropped her body so they could not hold her up as they pulled her out of the house, and kept pulling her arms away from the officers so she could not be handcuffed. § 87(2)(b) stated that no officers got on top of her or restricted her breathing or threw her to the ground.

Although the video does show § 87(2)(b) prone on the floor at the bottom of the stairs, an officer can be heard asking her if she is okay, and it briefly shows, before the camera pulls away, that officers are standing over her. Later, when she cannot be seen, she is told to stop resisting before she is seen being pulled out of the house.

All of the officers denied stepping on her, slamming her to the ground, or putting pressure on her neck or back or restricting her breathing. The officers were consistent with § 87(2)(b)'s assertion that § 87(2)(b) was non-compliant and refused to get up and when they tried to lift her she dropped her weight so they could not walk her out of the house and instead had to pull her out.

§ 87(2)(g) Although she stated that she had not been drinking at a party where she remained until after 3am, she was seen in the video wearing a necklace that said in large letters TURNTUP, slang for being intoxicated. § 87(2)(g) although she originally stated that she fell down the stairs while preventing the officers from leaving the house with § 87(2)(b) she later stated in her Notice of Claim filing and her follow-up phone calls to the CCRB that she was intentionally pushed down the stairs. § 87(2)(b) was unable to provide an explanation as to why it took several officers minutes to put her in handcuffs. § 87(2)(b) also admitted that she refused medical attention and it was not until after she was released from police custody that she decided to seek medical treatment. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) who stated that he was providing a phone statement to the CCRB because he would not continue to be involved in “story telling” for § 87(2)(b) (encl. 24y), § 87(2)(g) that § 87(2)(b) had to be pulled out of the house by officers because she struggled and refused to walk and that no officers stepped on her neck or back or restricted her breathing. § 87(2)(g).

Patrol Guide Procedure 203-11 states that officers must use minimal force when effecting an arrest (encl. 1w-x).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), it is recommended that **Allegation F** be closed as **Exonerated**. § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation G** and **Allegation H** be closed as **Unfounded**.

POD: _11_____

Investigator: _____	_____SI Jennifer Jarett_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date